

Peru 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Peru during the year.

Significant human rights issues included credible reports of: serious restrictions on freedom of expression and media freedom, including violence or threats of violence against journalists and censorship, and violence against union members.

The government took credible steps to identify and punish officials who committed human rights abuses in recent years but passed legislation that hindered accountability for some cases predating 2002.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

Prosecutors advanced investigations regarding 50 civilians allegedly killed by security forces between December 2022 and February 2023 in the context of political protests. In the first nine months of the year, prosecutors

formalized accusations against 35 military officers and one police officer for direct or indirect responsibility for 10 deaths in Ayacucho in December 2022, and 198 police and military for the death or serious injury of 317 citizens. In July, congress rejected the attorney general's request to lift President Dina Ercilia Boluarte Zegarra's immunity and investigate her responsibility for the 2022-23 protest killings. President Boluarte denied knowledge of the situation on the ground during official testimony. An investigation was underway regarding her role in the repression of the protests.

In July, congress passed legislation to prevent prosecution of crimes against humanity committed before 2002, including unlawful killings, potentially leading to impunity. Courts and prosecutors challenged the law, alleging it was unconstitutional and inconsistent with international treaties and agreements.

In July, unidentified gunmen killed Indigenous and environmental defenders Ricardo Kunchikui Shimpujat, in Amazonas Region, and Mariano Isacama Feliciano, in Ucayali Region. As of August, the crimes remained under investigation.

In April, a court in Ucayali sentenced four individuals involved in illegal logging to 28 years in prison for the 2014 murder of four Indigenous Asháninka leaders in Saweto, Ucayali. The April sentencing resolved a 2023 court decision to restart the judicial process due to a lack of a "proven motive."

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media. The government generally respected this right, but there was a significant increase in reported aggression against journalists who covered antigovernment protests. Civil society reported government attempts to limit freedom of the press, particularly reporting on antigovernment protests. In general, an independent press and democratic political system protected freedom of expression, including for media members.

There were reports of attempts to intimidate political opponents and marginalized communities through the monitoring of political meetings. Additionally, restrictions on symbolic expression, such as flags, political buttons, and symbols, were observed. Laws criminalizing “hate speech” and the expression of political views existed but were not always enforced.

Physical Attacks, Imprisonment, and Pressure

International and domestic organizations, including the National Journalists' Association, the Institute for Press and Society, the Association of Foreign Press of Peru, the Ombudsman's Office, and the National Coordinator for Human Rights, denounced attacks on journalists. Civil society reported an increase in government, police, and societal intimidation of journalists, particularly during antigovernment protests. The National Journalists' Association reported 251 individual attacks or forms of aggression against journalists between January and September.

A group of five women journalists, who worked in different media outlets, reported sexual harassment, intimidation, and threats, including receiving explicit photographs and images of weapons by the same individual.

Despite multiple formal complaints lodged with police, in August the victims claimed authorities did not prioritize their safety and were slow to respond.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

The Legal Defense Institute, a civil society organization, stated persons linked to a wide array of political and economic interests threatened press freedom by intimidating local journalists who reported on their activities. This was particularly acute in areas with a strong presence of illegal activities.

b. Worker Rights

Freedom of Association and Collective Bargaining

With certain limitations, labor laws and regulations provided for freedom of association, the right to strike, and collective bargaining. The law prohibited intimidation by employers and other forms of antiunion discrimination. It required reinstatement or compensation of workers fired for union activity, but workers faced prolonged judicial processes and lack of enforcement following dismissals for trade union activity. The law allowed workers to form unions without seeking prior authorization. By law, 20 workers or more were required to form a union or “an enterprise-level union.” Fifty workers or more constituted a sector-wide union or federation. Some labor activists viewed these requirements as prohibitively high, particularly for small and medium-sized businesses, which represented almost 97 percent of all businesses.

Long-term employment under short-term contract schemes was widespread, including in the public sector. The use of unlimited consecutive short-term contracts, which was allowed by special labor and employment laws that applied to the agricultural sector and several “nontraditional export” sectors, made the exercise of freedom of association and collective bargaining difficult. Unions asserted the Ministry of Labor did not apply the required procedures for legal use of limited-term contracts. Private-sector

labor law set out nine categories of short-term employment contracts that companies could use. The law set time limits on contracts in each category and had a five-year overall limit on the consecutive use of short-term contracts. A sector-specific law covering parts of the textile and apparel sectors and other export sectors exempted employers from this five-year limit and allowed employers to hire workers indefinitely on short-term contracts.

The law allowed unions to declare a strike in accordance with their governing documents, with prior notice of five days for the private sector, 10 days for the public sector, and 15 days for emergency services. Neither private- nor public-sector institutions could legally dismiss workers who participated in a strike.

The government did not effectively enforce the law on freedom of association, collective bargaining, or other labor laws. Penalties for labor infractions were less than penalties for violations of other laws involving denials of civil rights, such as discrimination. Penalties were rarely applied against violators.

Workers faced prolonged administrative and judicial processes and lack of enforcement following dismissals for trade union activity. In the first nine months of the year, organized criminal groups killed five union leaders, prompting more than 1,000 union members to demonstrate on August 20 in various cities, the first of several strikes during the year demanding

government action against extortion in construction and other sectors. For example, two prominent union leaders, Arturo Cárdenas and Américo Gonzáles, were killed in mid-August, highlighting the increased targeted killings of union leaders.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a national minimum wage, which was above the official estimate for the poverty income level. The law provided for a 48-hour workweek and one day of rest for workers in the formal sector. There was no prohibition on compulsory overtime, nor did the law limit the amount of overtime a worker could work. The law stipulated 30 calendar days of paid annual vacation. Domestic workers had the same rights as other formal-sector workers, such as required vacation time and yearly bonuses; however, the economy was largely informal, and many domestic workers reported not having a formal contract.

Occupational Safety and Health

The National Occupational Safety and Health commission, led by the Labor

Ministry and including employer and union representatives and the Health Ministry, was responsible for defining the national occupational safety and health (OSH) policy. The law established appropriate OSH standards and required employers to ensure safe workplace conditions. The government identified unsafe conditions and responded to workers' OSH complaints on occasion, but insufficient staffing and funding limited its actions. Workers could remove themselves from situations that endangered their health without repercussions. The law required workers to prove an employer's culpability before they could obtain compensation for work-related injuries.

Wage, Hour, and OSH Enforcement

The government did not effectively enforce wage, overtime, and OSH laws, and penalties were less than those for similar crimes, such as fraud. Noncompliance with the law was punishable by fines, but the government rarely applied penalties against violators. According to labor nongovernmental organizations (NGOs) and labor experts, many fines went uncollected, in part because the government lacked an efficient tracking system and at times lacked political will. Labor inspectors had the authority to make unannounced inspections and initiate charges or other penalties. The number of labor inspectors was not sufficient to enforce compliance.

The law permitted fines and criminal charges for OSH violations. Criminal penalties were limited to cases in which employers were convicted of deliberately violating OSH laws and labor authorities had previously and

repeatedly notified employers who subsequently did not adopt corrective measures.

As of December 2023, 72 percent of workers were employed in the informal sector. Labor laws and regulations were not enforced in the informal sector.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The law prohibited arbitrary arrest and detention and provided for the right of persons to challenge in court the lawfulness of their arrest or detention. The government did not always observe these requirements. The government constitutionally suspended the right to freedom from arrest without warrant in highways from January to February, extending a state of emergency that originated in December 2023 in the context of political protest, and in 14 Lima districts in September and October as a measure to fight organized crime.

Lengthy pretrial detention was a serious problem. The law allowed for pretrial detention of 36 months, after which courts were required to release

detainees who had not been sentenced. Judicial inefficiency, corruption, and general staff shortages caused delays in hearing cases, resulting in extended periods of pretrial detention. The length of pretrial detention occasionally equaled but did not exceed the maximum sentence of the alleged crime. The courts factored pretrial detention into final sentences.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibited such practices, but there were reports security forces had previously employed them. Credible experts identified recurrent signs of torture practices in victims of 2022-23 protest violence. According to some experts, official reports did not capture signs of torture, only the

outcome, such as “death” or “injury.” Some of these practices were reported to have taken place on the spot, spontaneously, and for punishment, not in a detention center as part of an organized scheme to extract information or similar goals. Local and international NGOs stated the government did not effectively prevent such abuses, many victims did not file formal complaints against their alleged abusers, and those who did so had difficulty obtaining judicial redress and adequate compensation.

Impunity remained a significant problem in the security forces. The lack of repercussions for the alleged abuses by security forces during political protests in November 2020 and between December 2022 and February 2023 heightened public concern regarding accountability.

b. Protection of Children

Child Labor

See the Department of Labor’s *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

In 2023, congress amended legislation, prohibiting marriage under the age of 18. The government did not enforce the law effectively.

Child marriages occurred; 98 percent involved a girl and an adult man.

Authorities registered 4,357 child marriages between 2013 and 2022. Six of them included girls younger than 14, and 464 included girls younger than 16. The government did not report further child marriages due to the 2023 change in the law prohibiting child marriage.

c. Protection to Refugees

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for protecting refugees. The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and recognized the Peruvian Catholic Migration Commission as the official provider of technical assistance to refugees and asylum seekers.

Throughout the year, the Ministry of Foreign Affairs conducted a campaign in coordination with UNHCR to validate asylum requests and identify priority cases.

Resettlement

The government did not have a formalized integration program for refugees, but it received persons recognized as refugees by other nations, granted refugee status to persons who applied in the country, and provided some administrative support toward their integration. UNHCR and NGOs provided these refugees with humanitarian and emergency aid, legal assistance,

documentation, and in exceptional cases, voluntary return and family reunification.

d. Acts of Antisemitism and Antisemitic Incitement

Estimates of the Jewish population ranged from 3,000 to 4,000 persons.

There were no known reports of antisemitism.